

25STCV35063 25STCV35063

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C07%2F22%2F2026

Source SHA-256: 93cb3ee0ec211d50fd44f25f2812a3775939bb9b5283a6be1ce88c3579a07b33

Case Number: 25STCV35063 Hearing Date: July 22, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 22,

2026 TRIAL DATE: Not Set

CASE: Plymouth Inglewood Development LLC v. 9000 Building

Consultant

CASE NO.: 25STCV35063

DEMURRER TO AND MOTION TO STRIKE FIRST

AMENDED COMPLAINT

MOVING PARTY: Defendants

9000 Building Consultant and Weizheng Wang

RESPONDING PARTY: Plaintiff Plymouth Inglewood

Development LLC

CASE HISTORY:

.

12/01/25:

Complaint filed.

04/08/26: First Amended
Complaint filed.

TENTATIVE RULING:

Defendants' demurrer is OVERRULED. Defendants' motion to
strike is DENIED.

Moving Party to
give notice.

BACKGROUND

This is an action arises out of the development of a
20 Unit Small Lot Home Complex at 113-153 W. Plymouth St., Inglewood, CA (the
"Development" or the "Project").

Plaintiff alleges that it contacted Defendant Weizheng
Wang to complete interior fittings and fencing construction work. Plaintiff
alleges that on January 6, 2025, it contracted with Defendant KW Vulcan
Construction ("KWVC") for the
installation of fences for a total contract price of \$274,000.00. (FAC, Exh.
1.)

Plaintiff
also alleges on January 12, 2025, it contracted with KWVC for trimming and
similar construction for a total price of \$377,940. (FAC, Exh. 2.)

Plaintiff
alleges Defendant Wang told Plaintiff that payments were to be made to KWVC's
parent company, Defendant 9000 Building Consultant ("9000 BC"), and Plaintiff
did so.

Plaintiff
also alleges that on September 25, 2025, Defendant 9000 BC sent Plaintiff a
contract for fence installation for a total price of \$330,000. This contract
was an updated version of the first contract with additional items. Defendant W
Wang told Plaintiff that KWVC was going out of business; therefore, Plaintiff
needed to change the contract from KWVC to 9000 BC. This contract has not been signed.

Plaintiff alleges that Defendant KWVC breached the contracts in a variety of ways and Plaintiff had to complete the project.

Plaintiff also alleges that Defendants were unlicensed contractors.

DISCUSSION:

First through Third Causes of Action
for Breach of Contract

Defendants demur to the first through third causes of action for breach of contract, arguing first that the causes of action are uncertain because Defendants cannot ascertain when the contract was to be performed, between which parties the contract was, by whom performance was required, how much was to be paid, and to whom payments were to be made. In addition, it remains unclear which breaches were attributable to which contracts. Defendants argue that the complaint alleges breaches that are not contained in those contracts.

“The standard elements of a claim for breach of contract are: ‘(1) the contract, (2) plaintiff’s performance excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Demurrers

for uncertainty “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3.) Defendants fail to show that this level of detail is required. Further, the FAC alleges that Defendants were agents, employees, alter egos, of one another. Thus, the FAC is not so incomprehensible that Defendants cannot respond. The demurrer for uncertainty is overruled.

Next, Defendants argue that Plaintiff fails to plead the essential terms of the contract, and did not attach the contract to the FAC. “A written

contract may be pleaded by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) “In order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms.” (Id.) Here, as noted by Plaintiff, the contracts are attached to the FAC. Thus, this argument is without merit.

Defendants also generally argue that Plaintiff alleges breaches that are not part of the alleged contracts being breached. However, without specific references as to which breaches are not part of the contract, the Court cannot sustain the demurrer on this ground. In any event, even if one alleged breach is part of the contract, then the causes of action remain. A demurrer cannot be sustained as to only a part of a cause of action. It is well established that a demurrer must dispose of an entire cause of action to be sustained. (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.)

The demurrer to the first through third causes of action are overruled.

Eighth Cause of Action for Fraud

Defendants demur to the eighth cause of action for fraud, arguing that Plaintiff fails to plead with the requisite specificity.

The elements of fraud are: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.)

In California, fraud must be pled with specificity. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) “The particularity demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered.” (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469.) Fraud requires each element be alleged with particularity; the claim cannot be

saved by referring to the policy favoring liberal construction of pleadings. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 216.)

The

FAC alleges that on December 27, 2024, Jinliang Cory Chen, an agent for Plaintiff, met with W Wang at the job site, and Wang told Cory that Wang was a licensed contractor. Thus, the specificity requirement has been satisfied. The demurrer is overruled on this ground.

Tenth

Cause of Action for Unfair Business Practices

Defendants

also argue that the tenth cause of action fails to state a proper cause of action without further elaboration.

To set

forth a claim for a violation of Business and Professions Code section 17200 ("UCL"), Plaintiff must establish Defendant was engaged in an "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising" and certain specific acts. (Bus. & Prof. Code, § 17200.)

The FAC

alleges that Defendants operated KWVC and 9000 BC as "sham" contractors by leasing S. Wang's license to W. Wang. Thus, this allegation satisfies the fraud prong of the UCL.

Moreover, a UCL

violation claim has been sufficiently alleged under the UCL's "unlawful" prong. Here, by prohibiting any unlawful business practice, section 17200 necessarily "borrows" violations of other laws. "[V]irtually any law or regulation—federal or state, statutory or common law—can serve as [a] predicate for a ... [section] 17200 'unlawful' violation. [Citations]." (Klein v.

Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1383 (Klein).) Plaintiff alleges that Defendants violated Business and Professions Code

sections 7114 and 7116.

The

demurrer to this cause of action is therefore overruled.

Motion to Strike

Defendants move to strike allegations relating to fraud and punitive damages.

To state a claim for punitive damages under Civil Code section 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1042.) The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (Id.) A motion to strike may lie where the facts alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. (Turman v. Turning Point of Central California (2010) 191 Cal. App. 4th 53, 63.)

As the demurrer to the fraud cause of action is overruled, there is a basis for punitive damages. The motion to strike is therefore DENIED.

CONCLUSION:

Accordingly, Defendants' demurrer is OVERRULED. Defendants' motion to strike is DENIED.

Moving Party to give notice.

IT IS SO ORDERED.

Dated: July 22, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the

hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.